

TOWN OF ARLINGTON

MASSACHUSETTS

**REPORT OF THE
HYBRID TOWN MEETING
STUDY COMMITTEE**



**TO THE
TOWN MEETING
APRIL 2025**

Hybrid Town Meeting Study Committee Members

The Hybrid Town Meeting Study Committee members are: Rebecca Gruber (Co-chair and Town Meeting Member), Alex Bagnall (Co-chair and Town Meeting Member), Guillermo Hamlin (Town Meeting Member), Pete Gast (Town Meeting Member), Kerrie Fallon (Disability Commission Commissioner), Steve Storch.

We are grateful for the contributions of Sayed Khodier (Town IT representative), Juli Brazile (Town Clerk), and Greg Christiana (Town Moderator).

Format of This Report

Per the Committee's mandate, the Committee investigated several aspects of what is entailed in implementing Town Meeting in a hybrid format. This report reflects those areas of investigation, with sections on each of the following:

- Community Surveys
- Other Towns' Experiences
- Legal Landscape
- Technology Requirements
- Potential Procedural Changes
- Accessibility Considerations
- Impacts on Town Meeting

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Executive Summary

In the spring of 2020, the pandemic caused all Town boards and committees to shift to remote meetings. Since Town Meeting is a more complex endeavor, it took some additional planning and specialized software to make a remote Town Meeting possible. We held our first remote Town Meeting in the fall of 2020, with extremely high attendance and participation. In the spring of 2022, we celebrated returning to in-person meetings at Town Hall, although member attendance waned from its surge during the virtual Town Meetings. Some Members were still concerned about the heightened health risks of in-person assemblies.

During the pandemic, the Town, through the Remote Participation Study Committee, explored the possibility of enabling hybrid (both in-person and remote participation) meetings of boards and committees. The Town updated the technology in a few Town conference rooms to add Zoom and Teams capabilities. The Town Meeting Procedures Committee took the next logical step to ask: if a hybrid Town Meeting were technologically and legally possible, would the Town want that? This question was the basis for the formation of the Hybrid Town Meeting Study Committee and this report.

Large hybrid meetings, while more technically complex than smaller meetings, are possible. Several other towns, including Belmont and Lexington, have held hybrid Town Meetings. Our exploration suggests that holding hybrid Town Meetings will require investment in updates to Town Hall and staffing additions to the support of Town Meetings, increasing the costs associated with Town Meeting. Hybrid Town Meeting would also have ancillary benefits to in-person attendees and to the Meeting's accessibility.

The hybrid format for Town Meeting has the potential to significantly enhance accessibility for participants with mobility, health, and/or other challenges. By enabling remote participation, we remove physical barriers associated with attending meetings at Town Hall, such as navigating limited parking options, insufficient ramps, and bathrooms that may not fully meet accessibility standards. While the hybrid model mitigates some of these obstacles, it does not absolve the Town of its responsibility to make Town Hall accessible. Addressing structural, technological, and logistical shortcomings remains critical to ensuring inclusivity for all residents.

While nothing is certain about the final status of hybrid Town Meetings at the State level, it seems highly likely to the Study Committee that towns will continue to be permitted to have hybrid Town Meetings, and there is a possibility that towns will be required to have them. We do not see

anything in our review of existing Town By-laws that would need to be changed to enable hybrid Town Meeting.

However, the question “Do we want to have hybrid Town Meetings?” does not have a straightforward answer. While some Town Meeting Members like or prefer remote participation, most are neutral or mixed, and some have very negative feelings about our fully remote Town Meetings. What is clear from the results of the surveys conducted by this committee is that for a segment of the population, the ability to participate remotely some or all the time would make a significant difference in their willingness to serve or continue to serve on Town Meeting. Concerns raised by survey respondents about the loss of the in-person collegial experience should not be dismissed, and we recommend that alleviating these concerns remain a focus of the Town Meeting Procedures Committee.

This committee recommends that the Town continue to develop the option for a hybrid Town Meeting. Depending on the availability of funds, it may take time to get all the technology, staffing, and procedural pieces in place to make a hybrid Town Meeting as successful an experience as possible. We also recommend that the Town Meeting Procedures Committee continue to improve on whatever method is selected and remain in contact with other towns to discuss lessons learned and share experiences.

Also, in addition to the technical requirements detailed herein, we recommend that the Town formalize its audiovisual systems support structure and consider making it an official part of the Information Technology Department’s portfolio. Town Meeting’s relationship with ACMi should also be reviewed. ACMi has provided uncompensated technical assistance to Town Meeting for years. A venture into hybrid Town Meeting will require close collaboration with and support from ACMi and the Town’s budget should reflect this.

In conclusion, any hybrid solution must comply with legal requirements, including transparency and accessibility standards. Ensuring equitable participation and a consistent experience for all attendees—whether in person or remote—will preserve the integrity and tradition of Town Meeting. Through strategic planning, thoughtful investments, and a focus on inclusivity, the hybrid format can modernize Town Meeting while upholding its collaborative and democratic values.

Background

The Hybrid Town Meeting Study Committee was formed by Article 2 brought by the Town Meeting Procedures Committee to the Special Town Meeting during the Spring 2023 Town Meeting.

At the Town Meeting Procedures Committee meeting of March 2nd, 2023, the Committee discussed options for a safe and healthy meeting environment for the upcoming Spring Town Meeting. While a hybrid meeting was not authorized by the State at that time, the Procedures Committee felt it would be beneficial to investigate the possibility of holding hybrid Town Meetings in the future. The full text of the motion brought to Town Meeting to form the Hybrid Town Meeting Study Committee can be found in Appendix A.

The motion established a committee to study the feasibility of conducting Town Meetings in a hybrid format, with both in-person and remote participation. The Committee's investigation was to include, but not be limited to, the legal, technological, logistical, procedural, and financial impacts of conducting hybrid Town Meetings. If warranted, the Study Committee would develop specific proposals for implementing hybrid Town Meeting and provide implementation support.

The Hybrid Town Meeting Study Committee first met on November 27, 2023. The Committee members appointed by the Town Moderator, Greg Christiana, included four Town Meeting members and two community members. Since then, the Committee has met in a hybrid format almost monthly, with individual members also working independently between those meetings. An interim report was made to the Spring 2024 Town Meeting (see Appendix B). Work by the Committee continued after that, resulting in this final report.

Surveys

Target Audiences

The article that created the Hybrid Town Meeting Study Committee specifically called out “providing opportunities for public comment on the Committee’s work.” The first step in meeting that charge was the creation and sharing of surveys with Town of Arlington community members. The Committee developed four different surveys targeting various community populations:

- Current Town Meeting Members - 181 responses received of a potential population of approximately 252. (The approximation is due to the survey being released before the April 2024 Town election, and staying open post the April 2024 Town election, allowing for the possibility of both outgoing and newly elected Town Meeting Members responded.)
- Remote Room Town Meeting Members - 7 responses received of a potential population of 12.
- Former Town Meeting Members - 19 responses received of a potential population of 50.
- Non-Town Meeting Members - 230 responses received.
- Total number of survey responses: 437

Focus of Questions (see Appendix C for the list of survey questions)

The questions asked in all four surveys broadly fall into the following categories:

- Demographics – For Town Meeting Members, the demographics questions focus on precinct and duration of service in Town Meeting. For other Arlington community members, the demographics questions are the same as the demographic questions typically asked in Town surveys, e.g., the Envision Arlington Annual Town Survey.
- Interest in having a remote option for Town Meeting – These questions pertain to the probability of Members’ making use of a remote option, possible reasons for using the remote option, likely number of Town Meeting nights using the remote option, and impact of having a remote option on running for and/or continuing to be in Town Meeting.
- Concerns about participating in Town Meeting in a hybrid format – These questions pertain to Town Meeting Members’ experience with the past sessions of Town Meeting in a remote-only format, concerns about audiovisual limitations, concerns about the accurate capture of

votes, concerns about the ability to participate in debate, and about constraints on informal collegial conversation.

Outreach Efforts

The Hybrid Town Meeting Study Committee made a concerted effort to encourage the community to complete the surveys. We benefited from being able to communicate with the audiences for the Town Meeting Members' surveys directly by email. In addition, the Study Committee presented during the April 2024 Town Meeting and encouraged Town Meeting Members who hadn't already done so to complete the survey.

Outreach about the survey for the general Arlington community required more effort and included: information about the survey and a link in Town notices, flyering in public spaces, and messages in informal community "message" boards, including the A-List and Arlington Facebook pages. The Study Committee hypothesizes that respondents to the Non-Town Meeting Members survey most likely already had some knowledge and interest in Arlington's Town Meeting governance structure.

Summary of Results (see Appendix C for the aggregated results)

- Concerns about remote participation
 - Across all four survey groups, the loss of informal in-person communication with other Town Meeting Members was the item of greatest concern, closely followed by a possible related concern, loss of collegiality.
 - Respondents were also quite concerned about being seen and heard as well as seeing and hearing what is happening in Town Hall.
 - Respondents seemed generally confident that their votes would be registered accurately, perhaps reflecting experience with fully remote Town Meeting.
- What drives interest in remote participation?
 - Caregiving, travel, health and unforeseen circumstances were leading drivers in interest in remote participation among current and former Town Meeting Members (TMMs). Users of the Town Meeting Member remote room were primarily driven by health concerns.
 - Accessibility of Town Hall was not noted as an issue by current and former TMMs, though that could be misleading as those for whom the accessibility, or lack thereof, of Town Hall is an issue might be less likely to run for Town Meeting in the first place.

- Electronic Communication
 - A significant majority of Town Meeting Members have used some form of electronic side-channel communication, such as texting, Slack, or other messaging applications. Of these users, a high percentage found the experience of using a means of electronic communication either Good or Excellent. A minority of respondents found the experience poor, though TMMs who don't like these forms of communication presumably would be less likely to use them.
- Open Comments
 - As would be expected, the open comments generally reflected the points expressed above. In general, people appreciated the necessity and convenience of the remote Town Meeting sessions held in fall 2020, spring 2021, and spring 2022, but bemoaned the loss of collegiality, informal interactions, and the slower pace of remote Town Meeting.

Other Towns' Experiences

The Hybrid Town Meeting Study Committee's investigations into the details of other towns' implementation of hybrid town meetings are documented in Appendix D. A number of best practices, requirements, recommendations, and observations emerged as a result of our investigative efforts:

- Internet-based technology is likely to be the most practical solution for in-person/remote voting, queueing, and audio/video connectivity.
- Sufficient Wi-Fi capacity is needed within the meeting venue to support the expected number of in-person Town Meeting Members' Internet devices (phones, tablets, laptops).
- Internet-connected devices might need to be provided by the Town - either to all in-person TMMs during the meeting, or to those that aren't able to supply their own devices, depending on the chosen system implementation.
- Voting and speaker queueing should be supported by software that simultaneously tallies, integrates, and displays in-person and remote TMM votes.
- Audiovisual connectivity between in-person and remote TMMs can be supported by standard video conferencing platforms (e.g., Zoom).
- The system should be implemented so as to support establishment of participants' in-person vs. remote location status at the start of each meeting session, without any prior notice required. This is strongly preferred.
- Speaker video/audio, warrant article text, prepared presentations and videos, speaker queue status, and voting status and results should ideally all be equally visible to in-person and remote participants, as well as to the public via the Town's public access media - all supported by good audio and visual quality.
- Technical support staff are required on the meeting venue floor for TMMs that have problems with their devices, as well as via telephone for remote participants.
- Additional support is required for active management of the audiovisual system, including audio quality control, and audio and video routing between fixed microphone locations in the hall, video cameras, the hall's speakers and projection screens, the internet-based videoconferencing system, computer(s) hosting presentation materials, and the public

access system. Thus, the total number of staff required to support a hybrid Town Meeting will be significantly greater than for in-person only.

- Training sessions and/or documentation should be made available to all hybrid meeting participants.

Experience in other communities suggests that as many as one third of Town Meeting Members will opt to connect to the Meeting from remote locations.

Legal Landscape

Current Law

The current guidance for holding hybrid and remote meeting (see Appendix E or this [link](#)) has two primary provisions. First, public bodies may continue providing “adequate, alternative means” of public access to the deliberations of the public body, instead of holding meetings in a public place that is open and physically accessible to the public. Second, any or all members of a public body may continue participating in meetings remotely. This second provision is what allows towns to hold hybrid town meetings currently. Note that the towns can hold hybrid meetings under this authorization regardless of the level of health emergency; this does not change with the end of the pandemic designation. The authorization does have stipulations which would be a change for Arlington, specifically all votes must be taken by roll call and all members of the public body must be clearly audible to each other and to members of the public.

Text of link: **<https://www.mass.gov/info-details/updated-guidance-on-holding-meetings-pursuant-to-the-act-extending-certain-covid-19-measures>**

Potential Legislation: House Bill 4771

Draft legislation (see Appendix F or this [link](#)) was reported favorably by committee and referred to the committee on House Ways and Means. It was not acted on in 2024 or early in 2025, but the current aspiration of our legislators is to pass it in their next legislative session. Under this bill, towns would be able to hold hybrid Town Meetings. The Members, both in-person and remote, must be able to speak, make a motion, raise a point of order, object to unanimous consent, and vote. If a meeting is hybrid, no one is required to be physically present. It is possible that the final version will require towns to support remote participation for Members that request it, either as a disability accommodation or for other reasons.

Text of link: **<https://legiscan.com/MA/bill/H4771/2023>**

Arlington Town Bylaws

Our town bylaws are compatible with hybrid Town Meeting with two considerations. 1: Our bylaws allow voice votes and standing votes but the current hybrid guidance does not, so we would have to abstain from those vote mechanisms. Updated State law might enable voice votes in the future, and we may need to update the bylaws concerning hybrid voice votes at that time. 2: Our bylaws refer

to “members present.” During the pandemic, we interpreted that to include members present in the meeting regardless of physical location. We could clarify our bylaws to make that explicit to avoid confusion.

Considerations for Arlington Conducting Hybrid Town Meeting

The current proposed state legislation referenced above is more flexible in the audio quality required for participants than the current guidance referenced under current law, but Arlington would still need to improve our ability for all members to be heard clearly and for all members to be able to raise a point of order.

Electronic Voting

Hybrid Town Meeting may require a change in our method of voting. Member votes must be able to be recorded from both within Town Hall and from remote locations. Developing State legislation may also have requirements for hybrid meetings. For the 2025 Town Meeting we are using our current voting system. During the spring of 2025, the Town will be developing a Request for Proposal to solicit proposals for a new voting system.. Hybrid meeting features have been incorporated into a draft scoring rubric for this new system.

Technology Requirements

Transitioning to a hybrid format for Town Meeting will require careful attention to technology, accessibility, and operational efficiency to ensure a seamless experience for all participants. This initiative will involve integrating advanced audiovisual (AV) systems, secure voting mechanisms, and robust internet infrastructure, while also addressing the unique needs of both in-person and remote attendees. By meeting these requirements, the hybrid format can maintain the integrity of Town Meeting while increasing accessibility and inclusivity.

A reliable audiovisual setup is essential for the success of a hybrid Town Meeting. The audio system must guarantee that the voices of the moderator, presenters, and participants in general discussions are audible to everyone, including remote participants. Visually capturing the room can help remote attendees feel connected to the meeting's atmosphere. A large central display, legible from the back of the room, will serve as the primary screen for presentations and voting results. In some cases, supplementary displays may be needed for additional content, while a secondary screen could also show remote participants alongside those present in the room. Presenters should also have access to a confidence monitor that displays the main content for their reference.

Video integration is another key aspect of hybrid meetings, allowing remote participants to engage fully. Internet-based platforms can replicate the in-room experience by enabling features such as speaker queues, points of order, and windowed displays for remote speakers. Collaborating with ACMi for video production and streaming ensures high-quality camera shots of the Moderator, presenters, and audience.

Accessibility is a critical consideration. AI-driven live transcription services provide an affordable and accurate way to offer real-time transcriptions, enhancing accessibility for all attendees. Assistive listening systems, already required by the ADA, ensure equitable participation for individuals with hearing impairments. These systems should also be maintained or upgraded to meet the evolving needs of a hybrid Town Meeting.

Implementing a secure, user-authenticating, location-agnostic voting system is crucial for hybrid Town Meeting functionality. The voting system must account for each Town Meeting Members' location—whether in the main hall, a satellite room, or participating remotely—and deliver accurate results promptly. The voting mechanics, including displaying warrants, timers, and results, should be integrated into the main program to ensure transparency and consistency. A robust

internet connection within Town Hall is essential to support video conferencing, remote voting, and real-time data sharing without disruptions.

Transitioning to a hybrid format also requires adequate staffing. In-room support is necessary to manage the audiovisual systems, assist presenters, and address any technical issues during the Meeting. Support staff will be needed to help remote participants navigate the virtual environment, resolve connectivity challenges, and potentially even provide a backup mechanism for voting. These roles are vital to creating a smooth experience for all attendees, regardless of their location.

Hybrid Town Meeting will involve both capital and operational expenditures. Capital investments are needed to upgrade the audiovisual systems, displays, and internet infrastructure, as well as software for video conferencing and voting. Ongoing operational costs will include staff salaries, equipment maintenance, and software subscriptions. Proper budgeting and resource allocation will be necessary to ensure the success of the hybrid model.

For a more detailed list of specific technical requirements and suggested budget ranges see Appendix G.

Potential Procedural Changes

Discussions with the Town Moderator and research into other communities' hybrid Town Meeting practices have identified several areas in which current in-person Town Meeting procedures might need to be adjusted. Broadly, these procedures pertain to voting, speaker queue management, and recognition by the Moderator of member motions.

Voting

It is vital that all members' votes be registered in a timely and accurate manner. Experience from other communities and from our own remote Town Meetings indicate that more voting time may be required, and that human support may be needed to ensure that the votes of all remote Town Meeting Members are accurately recorded.

The procedure for voice voting may need to be reconsidered when members are participating remotely.

Speaker Queue Management

Easy access to indicating a desire to speak as well as transparency regarding who is in the speaker queue and who is selected to speak by the Moderator is important to the communal nature of Arlington's Town Meeting. The practice of one community's hybrid Town Meetings required the Moderator/Clerk to manage two separate speaker queues, one for in-person members and one for remote members, with a lower level of transparency of the remote member speaker queue.

Another community used their voting portal to manage and display combined remote and in-person speaker queues (queues for "for," "against," and "ask a question"). We recommend that the capabilities of our new electronic voting system, pursuant to the current request for proposal for a new contract, will help to alleviate some of the complexity of in-person and remote speaker queue management.

Recognition of Member Motions

A hybrid Town Meeting will require the Moderator to easily and quickly recognize motions, particularly ad hoc, incidental, and privileged motions, from both in-person and remote members. This capability is essential to ensure an equitable and efficient experience for all Town Meeting Members.

While the above discussion focuses on the remote participation in Town Meeting by Town Meeting Members, it is also worth noting that a hybrid Town Meeting would allow various other participants essential to the business of Town Meeting to also participate remotely (e.g., Town department heads, specific committee chairs, guests who are recognized by the Meeting to speak), requiring the Moderator to have the ability to effectively and efficiently recognize these remote participants.

Accessibility Considerations

One of the hybrid format's most transformative aspects is its potential to expand participation for individuals who might otherwise be excluded. For residents with mobility challenges or chronic health conditions, participating remotely offers a viable alternative to navigating an often inaccessible Town Hall. Open captioning and assistive listening technologies will further support inclusivity, enabling those with hearing impairments or other disabilities to more fully engage in the proceedings. Assistive listening is a current ADA requirement. Open captioning is not a requirement for the Town yet, but any video that the Town posts to its own web site will be required to have captions. These tools would improve the overall Town Meeting experience and align with ADA requirements and intention, underscoring the Town's commitment to equitable participation.

To maximize the impact of the hybrid format, it is essential to conduct regular audits of Town Meeting's accessibility. Such an assessment would identify specific technological, physical, or procedural barriers that members face when participating either in person or remotely. Addressing these barriers may involve providing members with additional technological support, such as loaned devices or training sessions, to guarantee everyone has the tools necessary to engage effectively.

While hybrid formats represent an important step forward in accessibility, they should complement rather than replace efforts to improve Town Hall's physical accessibility. Structural improvements, such as additional ramps, accessible parking spaces, and ADA-compliant restrooms, are critical to servicing in-person participation as a viable option for everyone.

By combining the flexibility of hybrid participation with ongoing improvements to Town Hall's physical infrastructure, Arlington can help assure that Town Meeting is more inclusive. A dual approach recognizes the immediate benefits of remote options while maintaining a long-term commitment to accessibility of all residents.

Impacts of a Hybrid Format on Town Meeting

The transition to a hybrid format for Arlington's Town Meeting encompasses both opportunities and challenges, particularly in the effort to maintain the collegial nature of the assembly while ensuring efficiency and accessibility. Person to person interactions are essential for fostering community and trust, elements that are often difficult to replicate in a hybrid setting. In-person and remote Town Meeting Members must uphold the same standards of decorum. This may necessitate that the Moderator establishes clear guidelines for remote participation and for those engaging in satellite rooms to facilitate effective communication and engagement. An equitable flow of speakers is critical for ensuring fairness and inclusivity.

The implementation of a hybrid format may induce anxiety among participants, especially in relation to the learning curve associated with new procedures and technologies. Certain TMMs may experience apprehension regarding their ability to navigate the technical aspects of remote participation, potentially affecting their attendance and overall engagement. Providing accessible training and support can help alleviate these concerns and ensure a smoother transition to hybrid Town Meetings.

Despite these challenges, the hybrid format presents more advantages than disadvantages, particularly in terms of timeliness, flexibility, and accessibility of Town Meetings. By mitigating barriers such as caregiving responsibilities, health recovery, or transportation challenges, a hybrid Town Meeting has the potential to serve as a valuable tool for recruiting and retaining Town Meeting Members. Furthermore, the consistent integration of hybrid formats could modernize meeting procedures, thus promoting inclusivity and ensuring that participation is accessible to a broader range of Arlington residents.

Appendix A – Text of Motion to Form Hybrid Town Meeting Study Committee

Motion to Form Hybrid Town Meeting Study Committee voted upon at Spring 2023 Special Town Meeting

1. Committee Membership and Organization

- A. The Committee shall consist of no less than six (6) and no more than nine (9) members, the number to be determined and appointed by the Town Moderator, but a majority of whom should be current or former Town Meeting Members, and a member of Town staff appointed by the Town Manager as a non-voting member. Voting membership of the study committee shall reflect racial, ethnic, and other forms of diversity in Town Meeting.
- B. It is expected that the Study Committee will have access to and be able to consult with Town Counsel, the Town Information Technology Department, the Town Clerk, the Town ADA Coordinator, and any other Town departments and employees, who may have pertinent expertise to share with the Study Committee.
- C. The Town Moderator or their designee shall serve as chair of the committee for the purposes of the Committee's first organizational meeting, in which the Committee may elect officers as it deems appropriate.
- D. A majority of voting members of the committee at any given time shall constitute a quorum, and decisions shall be based on the vote of a simple majority of those committee members present and voting.

2. Committee Charge

The Committee is charged with comprehensively examining options and requirements for conducting Town Meeting with hybrid participation. For the purposes of this Committee, hybrid participation is defined as a combination of in-person and remote participation, where remote participation includes: deliberation, voting, calculation of quorum, or any combination thereof. The Committee's study shall include, but not be limited to:

- A. Identifying if any best practices by other town meetings in the conduct of hybrid meetings;
- B. Providing opportunities for public comment on the Committee's work;
- C. Identifying potential legal requirements, issues and constraints in conducting Town Meeting with hybrid participation;

- D. Identifying technical requirements, issues and constraints in conducting Town Meeting with hybrid participation, including estimates of the requisite monetary costs;
- E. Identifying potential new policies and procedures requisite for conducting Town Meeting with hybrid participation;
- F. Identifying the potential beneficial and detrimental effects of conducting Town Meeting with hybrid participation. Questions central to this inquiry include, but are not limited to:
 - 1. evaluating the impact of hybrid options on the functioning of Town Meeting as an effective and collegial body, and
 - 2. the potential for increased or decreased interest in serving as a Town Meeting Member for under-represented populations in Town Meeting;
- G. Supporting the implementation of relevant proposals as needed.

3. Committee Reports

The Committee shall make recommendations to Town Meeting, including:

- A. Providing information and updates to the Town Moderator as requested;
- B. If warranted, developing specific proposals for the implementation of Town Meeting with hybrid participation;
- C. Making reports of its progress, findings, and recommendations to every Annual Town Meeting until the Study Committee is dissolved.

4. Dissolution of the Study Committee

The Committee shall be dissolved by a vote of Town Meeting.

Appendix B – Report to Spring 2024 Town Meeting

Report from Hybrid TM Study Committee

presented by Co-Chairs, Alex Bagnall and Rebecca Gruber



Established per vote of Spring 2023 Special Town Meeting

Charge:

- Review other towns' hybrid TM practices and technologies
- Evaluate hybrid TM legal, policy, procedural, social, and access issues
 - Include impact on community interest in serving as TMM's
- Evaluate and recommend potential technology approach, including budgetary impact
- Support implementation as required

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Hybrid TM Study Committee



First convened in November 2023, hybrid meetings held monthly

Work to Date

- Attended Lexington's hybrid town meeting
 - Will follow-up with outstanding questions regarding technology details, costs, design and rollout experience, etc.
 - Plan to attend other towns' hybrid meetings, e.g., Belmont, Burlington, Brookline
- Evaluated current and pending governing State legislation

Report to Spring 2024 Arlington Town Meeting

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Hybrid TM Study Committee



Work to date (cont'd):

- Designed surveys to assess opinions, concerns, and potential usage of remote TM access, to four groups:
 - Current and former TMMs
 - Past users of the Town Meeting Remote Room
 - Community at large

Survey current TMM: <https://forms.gle/Vomh4fkiaSrALHd7A>

Report to Spring 2024 Arlington Town Meeting

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Hybrid TM Study Committee



Timeframe of possible hybrid technology rollout for Arlington Town Meeting is to be determined. Impacted by:

- Technology selection
- Budgetary/contractual issues
- Existing Town bylaws

Committee Web Page: tinyurl.com/HybridTMSC

Committee Members: Alex Bagnall, Town Meeting Member; Kerrie Fallon; Pete Gast, Town Meeting Member; Rebecca Gruber, Town Meeting Member; Guillermo Hamlin, Town Meeting Member; Steve Storch

Report to Spring 2024 Arlington Town Meeting

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Appendix C – Survey Questions and Aggregated Results

Questions asked on each of the four different surveys:

- a. To Current Town Meeting Members
 - i. Precinct
 - ii. Duration of service in Town Meeting
 - iii. Experience with fully remote Town Meeting
 - iv. Expected usage of remote option
 - v. Timeframe for making the remote/in-person decision
 - vi. Reasons for remote participation
 - vii. Concerns about remote participation
 - viii. Concerns about hybrid Town Meeting
 - ix. Use of electronic communication between TMMs
- b. To Remote Room Town Meeting Members
 - i. Precinct
 - ii. Duration of service in Town Meeting
 - iii. Experience with fully remote Town Meeting
 - iv. Expected usage of remote option
 - v. Timeframe for making the remote/in-person decision
 - vi. Reasons for using remote room
 - vii. Reasons for remote participation
 - viii. Concerns about remote participation
 - ix. Concerns about hybrid Town Meeting
 - x. Use of electronic communication between TMMs

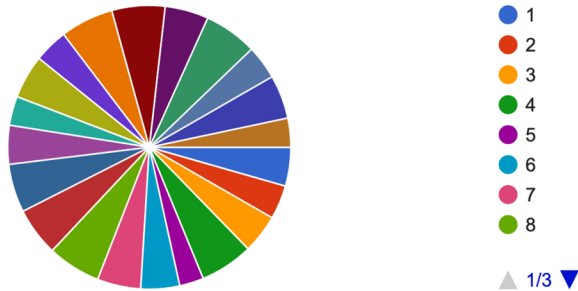
- c. To Former Town Meeting Members
 - i. Precinct
 - ii. Duration of service in Town Meeting
 - iii. Experience with fully remote Town Meeting
 - iv. Expected usage of remote option
 - v. Timeframe for making the remote/in-person decision
 - vi. Reasons for remote participation
 - vii. Concerns about remote participation
 - viii. Concerns about hybrid Town Meeting
 - ix. Use of electronic communication between TMMs
 - x. Would a hybrid option increase likelihood of running again?
- d. To Non-Town Meeting Members
 - i. Would a hybrid option increase likelihood of running?
 - ii. Concerns about remote participation
 - iii. Demographic information

Cumulative Responses

Current Town Meeting Members

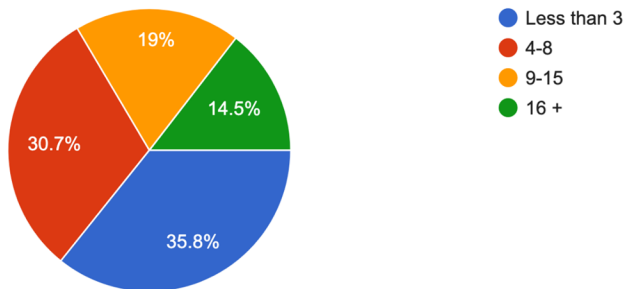
1. What precinct are you in?

181 responses



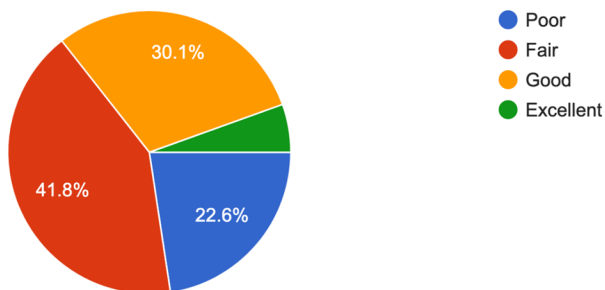
2. How many years have you been on Town Meeting?(select one option)

179 responses



3. If you were a Member for a fully remote Town Meeting, how would you rate the experience?

146 responses



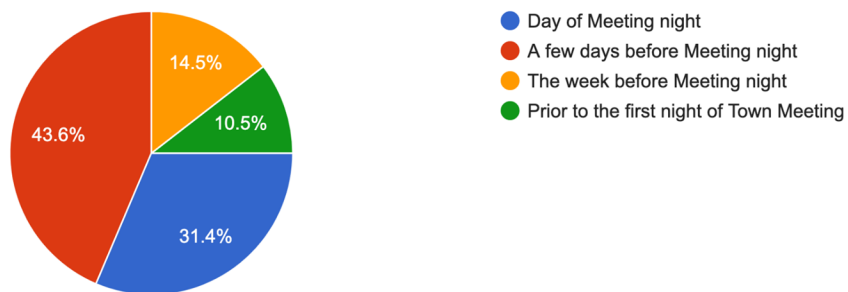
4. Assuming an eight night Town Meeting, how often would you estimate you would prefer to attend remotely? (select one option)

179 responses



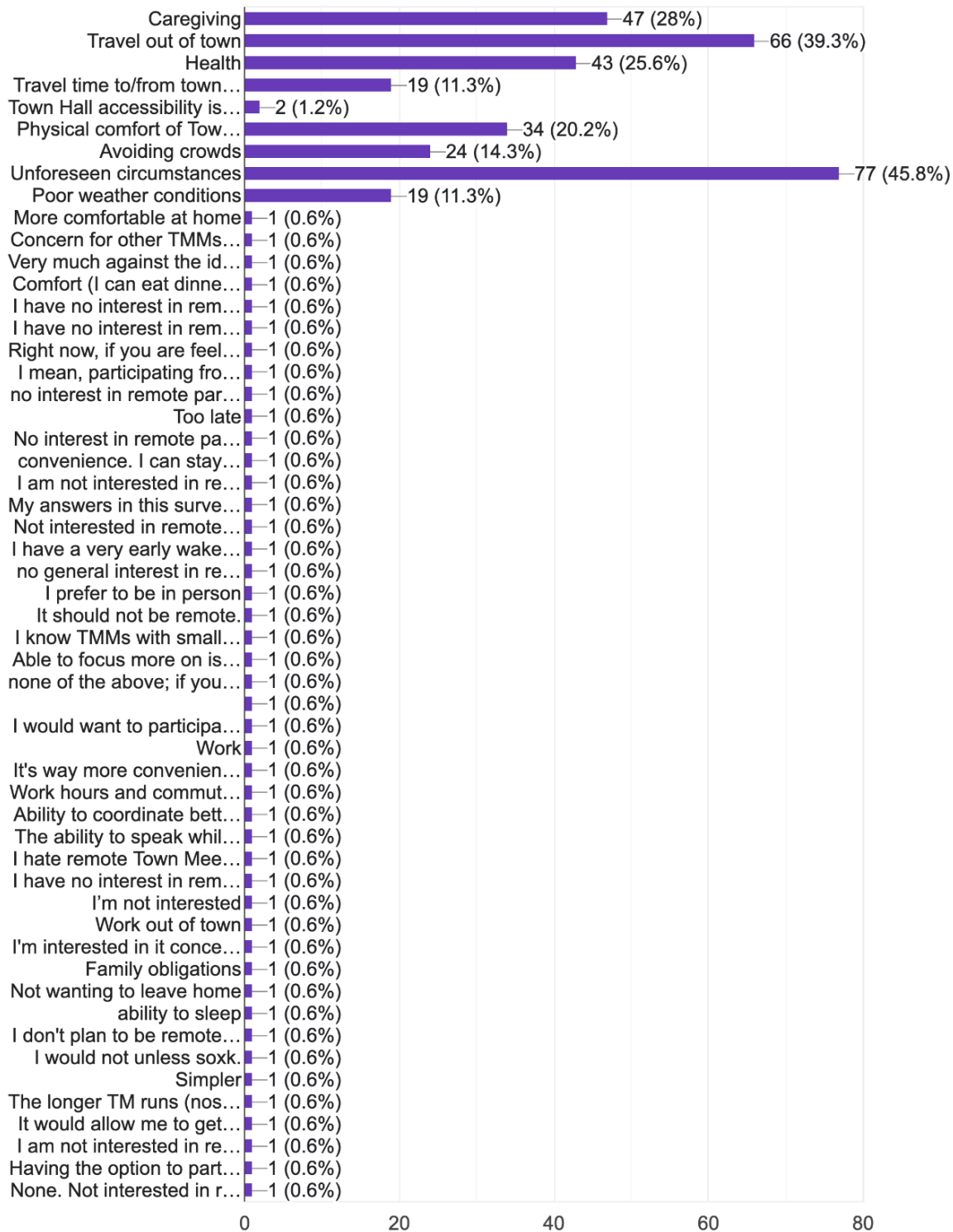
5. How much notice would you estimate you'd be able to give to indicate your desire to participate remotely on any given night? (select one option)

172 responses



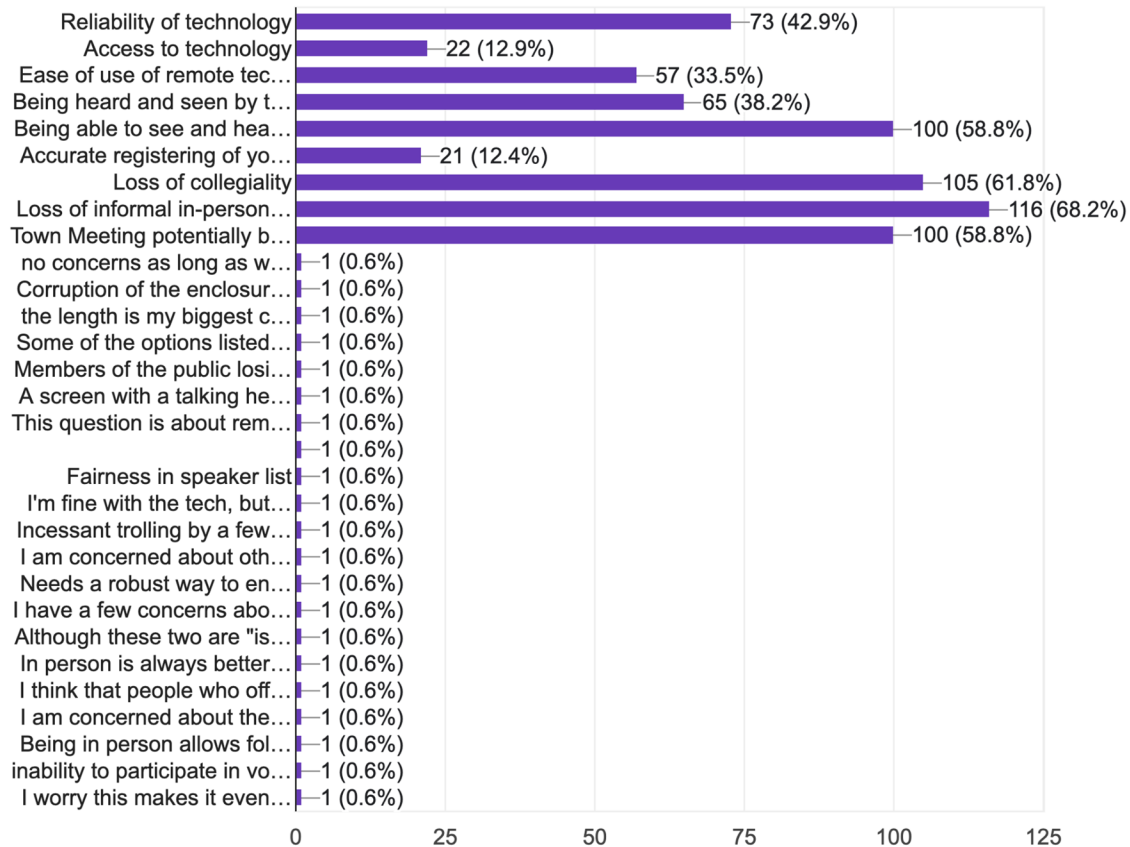
6. What drives your interest in remote participation? (check all that apply)

168 responses



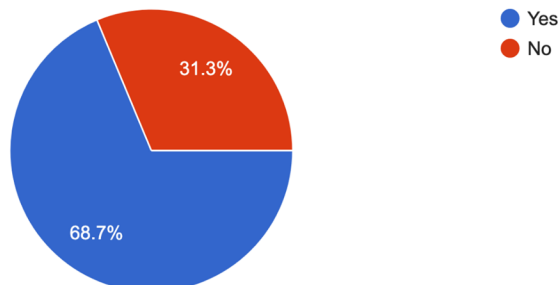
7. Do you have any of the following concerns about remote participation for Town Meeting? (check all that apply)

170 responses



8. One potential concern of a hybrid Town Meeting is the loss of opportunities for informal communication between Members. A number of chan...ack, Whatsapp, Signal, etc? (select one option)

179 responses



9. If you have used a form of electronic communication, how would you rate its usefulness in facilitating informal communication? (select one option)

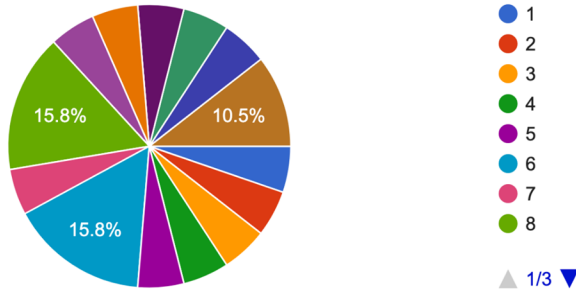
142 responses



Former Town Meeting Members

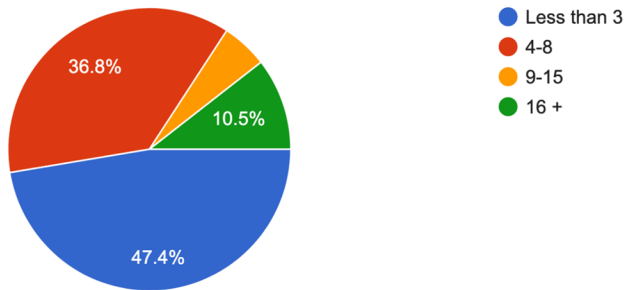
1. What precinct are you in?

19 responses



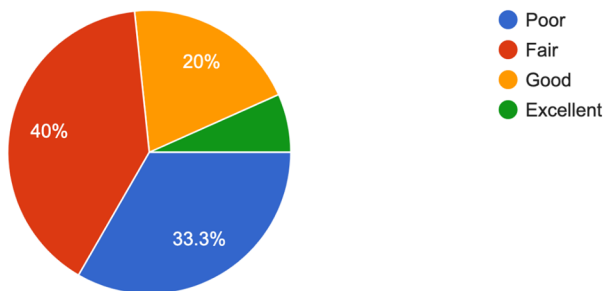
2. How many years were you on Town Meeting?(select one option)

19 responses



3. If you were a member for one of the past fully remote Town Meetings, how would you rate the experience?(select one option)

15 responses



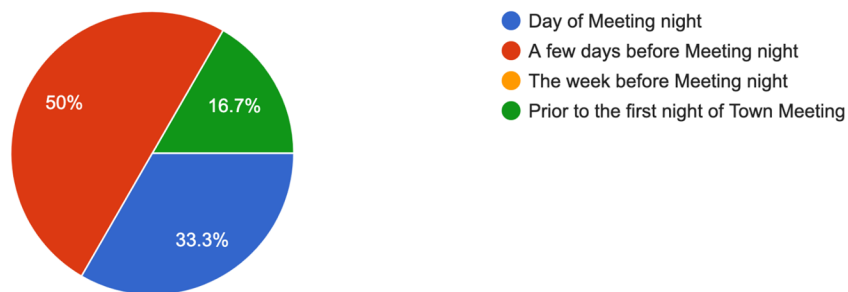
4. If you were on Town Meeting, and assuming an eight night Town Meeting, how often would you estimate you would prefer to attend remotely? (select one option)

19 responses



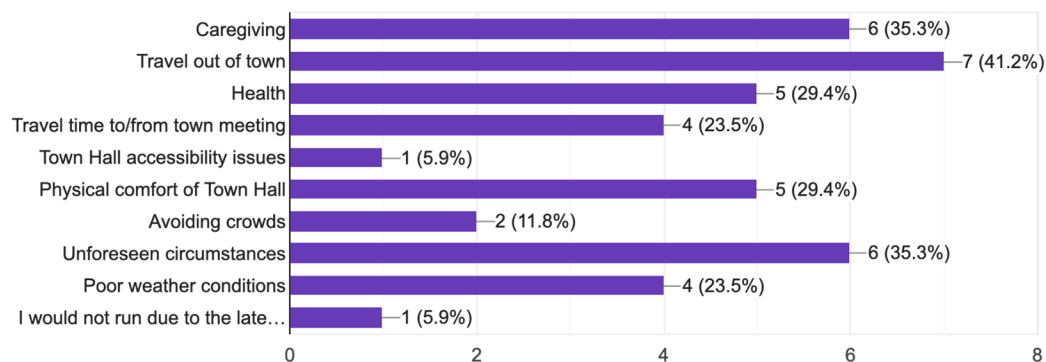
5. If you were back on Town Meeting, how much notice would you estimate you'd be able to give to indicate your desire to participate remotely on any given night? (select one option)

18 responses



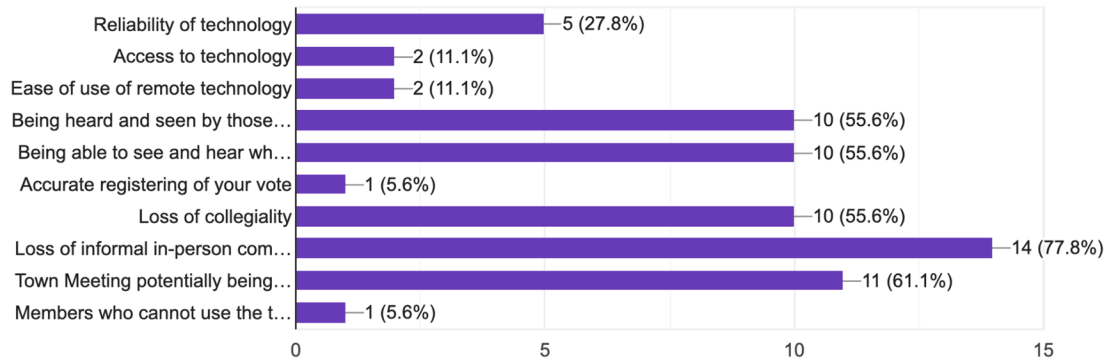
6. If you were to be on Town Meeting again, what might drive your interest in remote participation? (check all that apply)

17 responses



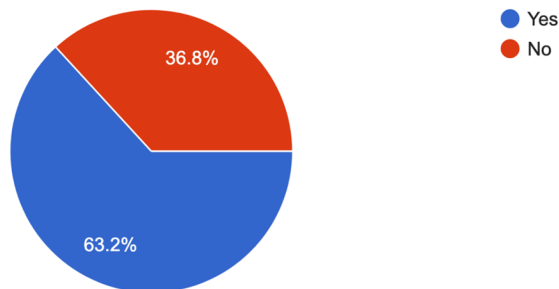
7. Do you have any of the following concerns about remote participation for Town Meeting? (check all that apply)

18 responses



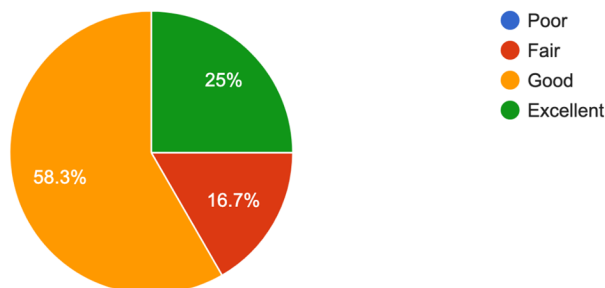
8. One potential concern of a hybrid Town Meeting is the loss of opportunities for informal communication between Members. A number of chan...ack, Whatsapp, Signal, etc? (select one option)

19 responses



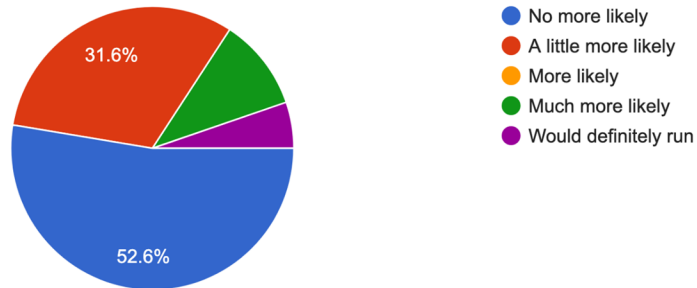
9. If you used a form of electronic communication, how would you rate its usefulness in facilitating informal communication? (select one option)

12 responses



10. How much more likely would you be to run for Town Meeting again with the flexibility to choose to participate remotely or in-person for some or all of the town meeting sessions? (select one option)

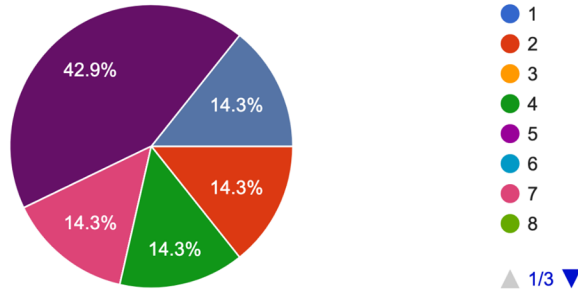
19 responses



Remote Room Town Meeting Members

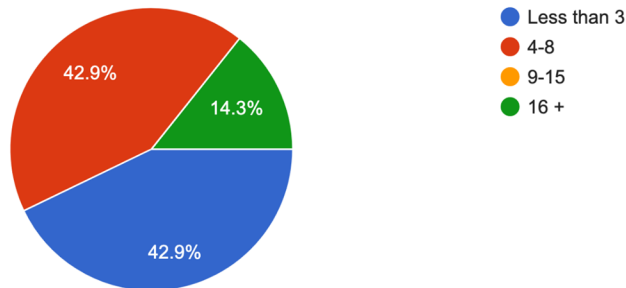
1. What precinct are you in?

7 responses



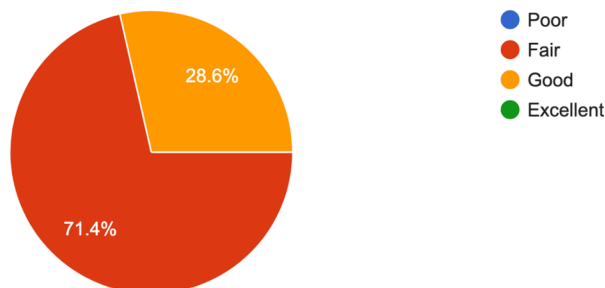
2. How many years have you been on Town Meeting?(select one option)

7 responses



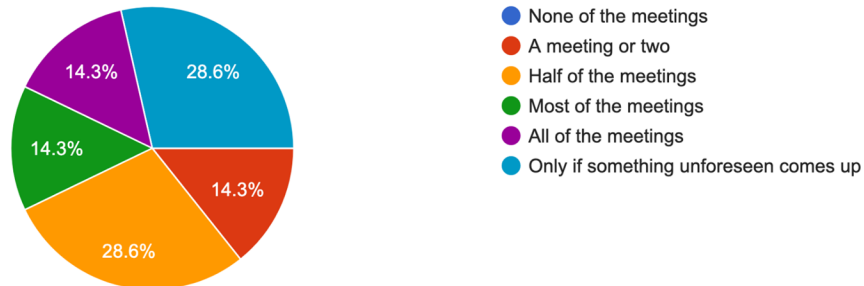
3. If you were a member for one of the past fully remote Town Meetings, how would you rate the experience?(select one option)

7 responses



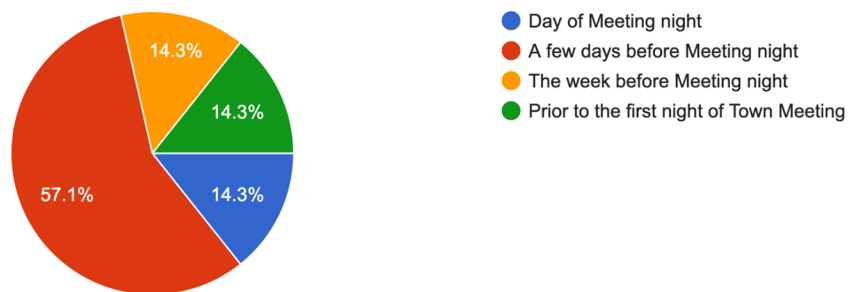
4. Assuming an eight night Town Meeting, how often would you estimate you would prefer to attend remotely? (select one option)

7 responses



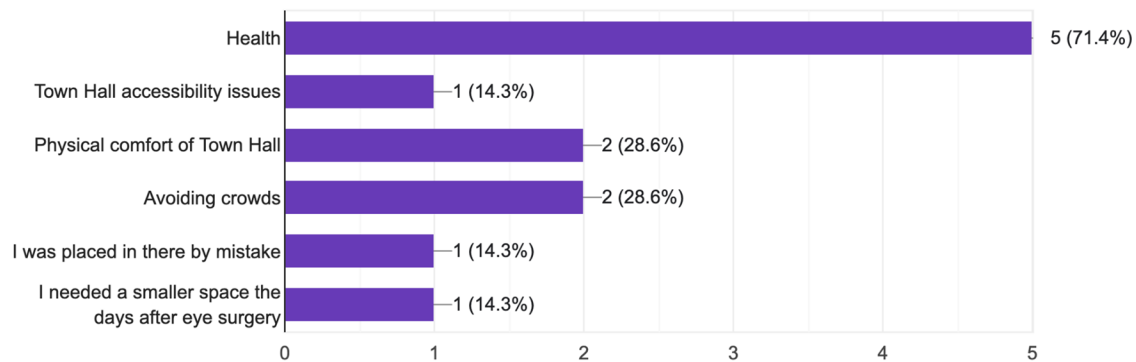
5. How much notice would you estimate you'd be able to give to indicate your desire to participate remotely on any given night? (select one option)

7 responses



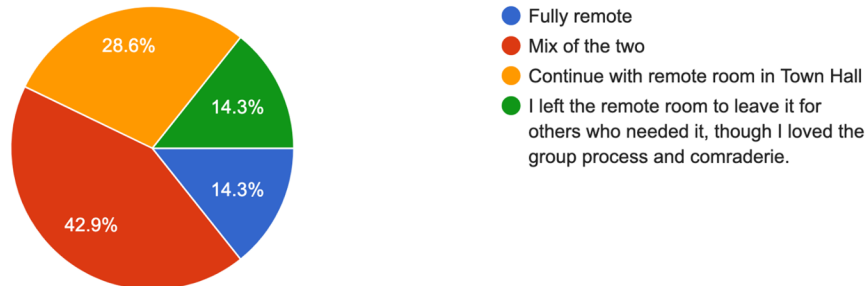
6. What drove your use of the Remote Room for a prior Town Meeting? (check all that apply)

7 responses



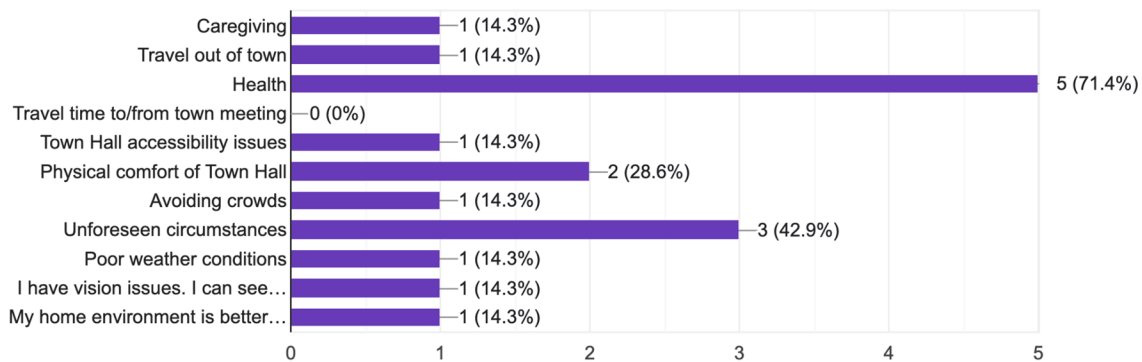
7. If remote Town Meeting was an option, would you prefer to use it, or would you prefer to continue with the remote room within Town Hall? (select one option)

7 responses



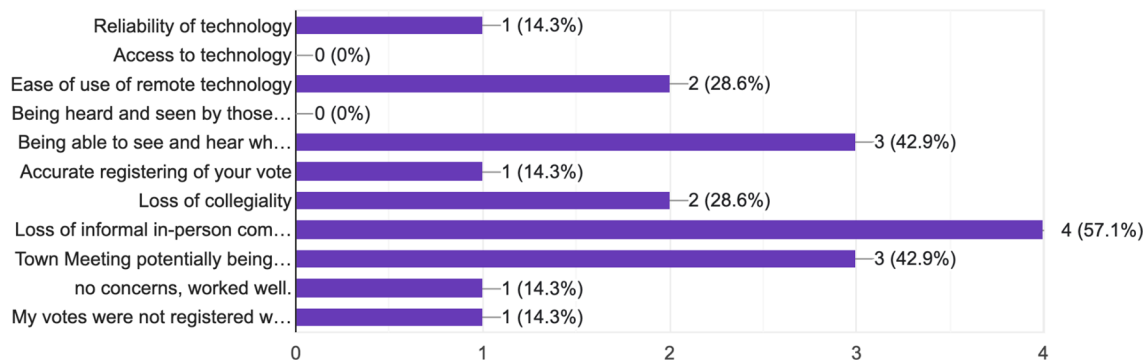
8. What drives your interest in remote participation for future Town Meetings? (check all that apply)

7 responses



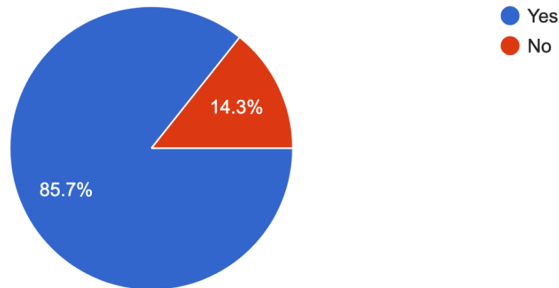
9. Do you have any of the following concerns about remote participation for Town Meeting? (check all that apply)

7 responses



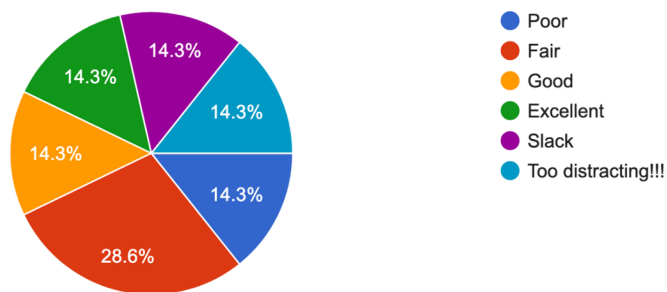
10. One potential concern of a hybrid Town Meeting is the loss of opportunities for informal communication between Members. A number of channels, such as Facebook, Whatsapp, Signal, etc? (select one option)

7 responses



11. If you have used a form of electronic communication, how would you rate its usefulness in facilitating informal communication? (select one option)

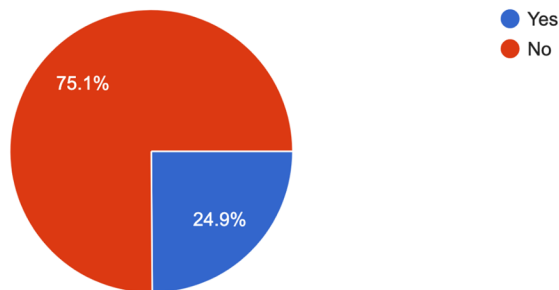
7 responses



Non-Town Meeting Members

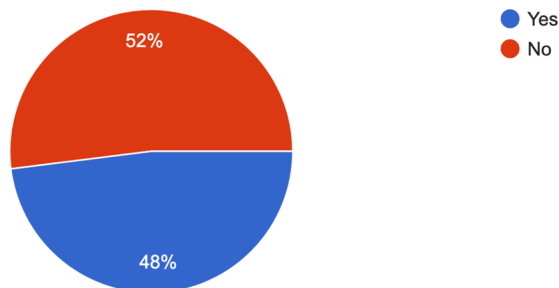
1. Have you ever been a Town Meeting Member? (select one option)

229 responses



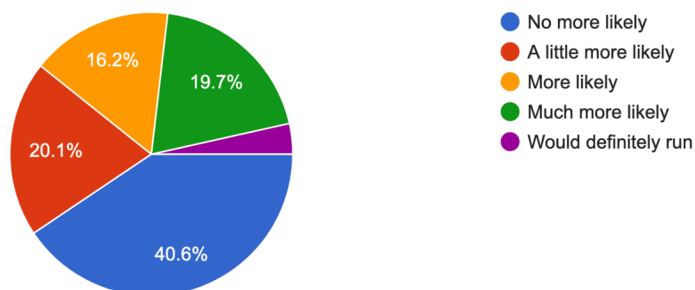
2. Have you ever considered running for Town Meeting, but decided against it? (select one option)

227 responses



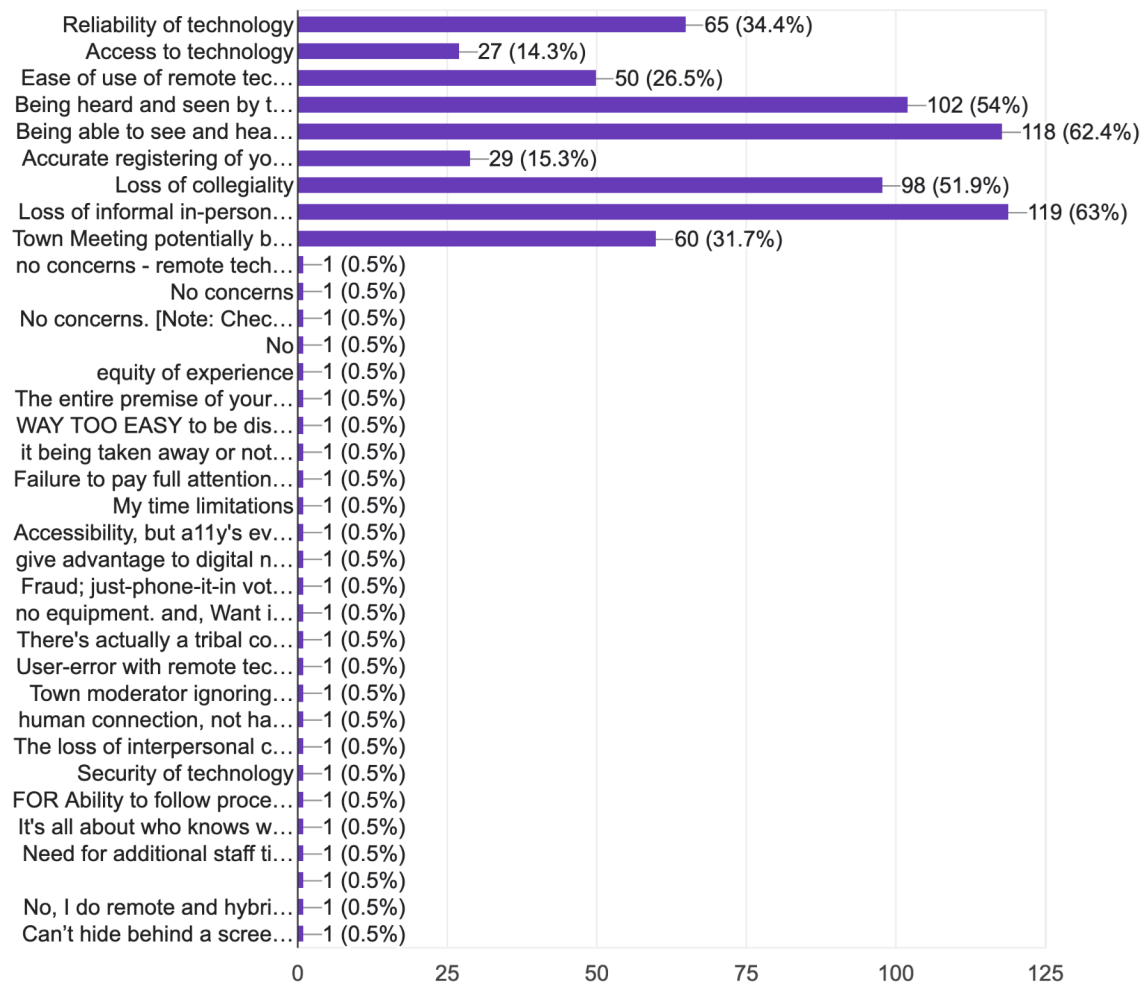
3. How much more likely would you be to run for Town Meeting with the flexibility to choose to participate remotely or in-person for some or all of the town meeting sessions? (select one option)

229 responses



4. Do you have any of the following concerns about remote participation for Town Meeting? (check as many as you want)

189 responses



Appendix D – Notes from Conversations with Other Towns

The following section documents the Committee’s investigations into hybrid Town Meetings that have been held in two neighboring towns: Lexington and Belmont, MA. It focuses on those areas expected to be relevant to the potential implementation of hybrid Town Meetings in Arlington, including the other towns’ experience with physical requirements for their meeting venues (sound, video, etc.), and required hybrid meeting support staff levels. Also included are observations made by the Belmont Moderator and Town Clerk regarding various “social impacts” of hybrid vs. fully in-person meetings.

The information provided is based on direct observation of Lexington’s hybrid Town Meeting on 18 March 2024, written comments provided by the Belmont Town Clerk on 6 November 2023, and a meeting held with the Belmont Moderator and Clerk on 14 June 2024 (both of the latter are regarding Belmont’s experience with hybrid Town Meetings held in the Fall of 2023).

Venues and Attendance

Lexington: Town Meeting is held in Cary Hall. The hall is of similar size and configuration to Arlington Town Hall, but was extensively renovated, including updated A/V and lighting facilities, in 2016. There are 189 Lexington Town Meeting Members, approximately 45 of which were remotely connected to the observed March 18th, 2024 hybrid Town Meeting session.

Belmont: Town Meeting is held in the new Belmont High School auditorium. Belmont has about 300 Town Meeting Members, with 230-250 participating on a typical night. A quarter to one third of those participated remotely in the Fall 2023 Hybrid Town Meetings. Provisions needed to be made to ensure adequate WiFi capacity in the auditorium for the Internet-based devices used for voting. (It can be assumed that this issue has been addressed in Lexington as well, given that both towns use Internet-based voting technology for hybrid meetings and have roughly similar-sized TMM populations.)

Devices / Software

Lexington: In-person participants are provided with town-issued tablets (in silicone cases) upon check-in, that are used to access a custom-designed Wordpress-based portal (similar to what Arlington used for remote Town Meetings) for queuing and voting. Remote participants access the same portal via home devices (desktops, laptops, tablets, phones). Remote observation of deliberations and speaking from remote locations are supported via a Zoom webinar.

Belmont: In-person participants vote using their own phones, tablets, or laptops running the PointSolutions app from Turning Technologies (approx. \$1,200 for Belmont's 1-year license); remote participants access the same voting app via their home devices. The Town has a small number of tablets that are provided to those that aren't able to supply their own devices. Like Lexington, remote observation of deliberations and remote speakers are supported via a Zoom webinar.

For both towns, remote participants must be able to simultaneously manage their Zoom meeting and voting app/portal access. For remote voting, only Town Meeting Members are allowed to log into the voting portal, and each Town Meeting Member has a unique username.

Remote Participation Notice

Lexington: Prior notice of intent to participate in Town Meeting remotely is not required. In-person vs. remote location is entered by Lexington TMMs via the portal at the start of each Town Meeting session.

Belmont: As with Lexington, prior notice is not required for remote Town Meeting participation. TMM location is established as part of in-person/remote check-in before the start of each meeting. (Check-in and testing for remote participants begins one hour before each meeting's start.)

TMM Audio and Video Access

Lexington: Both a large projection screen in the front of the hall, and a smaller display on the side are used to display (at various times during the meeting) warrant articles and related text, presentations, in-person and remote speakers (via Zoom), and the speaker queue and voting status (active voting window, results, etc.) from the portal. Remote TMMs see the same information via their Zoom connection.

Belmont: (The audio/video arrangement in the Belmont High School auditorium wasn't observed.) Zoom webinar is used for in-auditorium and remote observation of speakers, with the PointSolutions app used by all members for voting. In addition, remote TMMs have the option of observing the proceedings (but not queueing or speaking) via a simulcast Belmont Media stream – as a result, extension of voting window durations is required to accommodate the cable viewing delay experienced by those remote participants.

Queue Management

Lexington: All queue management, including points of order/objections, is handled by the portal software. "Yes", "No", and "Question" queues are supported. The queue status is visible to the

moderator and to all of the in-person participants. It is visible to remote participants when shared through the Zoom session. Remote TMMs are flagged in the queue display (via an asterisk) so that the moderator and A/V operators know where to find them (in the hall or on Zoom) when recognized.

Belmont: There is not a single integrated queue. In-person participants stand in line at two microphones in the auditorium, while remote participants use the “raise hand” function in Zoom. (Remote participants can also use the Zoom Q&A for questions during debate or for points of order.) Thus, remote TMMs and in-person TMMs that are not “panelists” in the Zoom webinar cannot see the entire speaker queue. The queue must be managed by having the Moderator monitor the in-room lineup, while the Clerk monitors the remote Zoom queue. The Moderator typically recognizes a remote participant every 4th speaker (taking three from the in-room lineup, followed by one from the Zoom connection, and so on).

Voting

Both towns tally and display in-person and remote TMM votes simultaneously in an integrated manner: Lexington using its custom portal and Belmont using Point Solutions. Everyone can see voting progress and results either in the hall or via Zoom if remote. The voting tabulation systems and Zoom webinar are implemented so as to prevent any non-voting Zoom webinar participants from accessing the voting system – which is only made available to Town Meeting Members.

Security

Voting security is provided via each TMM having a unique account/login access to the voting portals (apps).

Belmont’s host for the Zoom webinar only admits TMMs and authorized speakers that have received a limited-distribution Zoom link per a prepared list. The Zoom host only invites individuals to speak if he/she recognizes them. (It is assumed that Lexington implements similar protections for Zoom access security.)

Tech Support for Members

Lexington: Multiple tech support staff are present on the Cary Hall floor to provide assistance when TMMs have problems with their devices. There is also telephone tech support available for the remote participants.

Belmont: There is a team in the building, including Town Meeting Members, that helps members on the floor with technology problems, a support person stationed just outside the auditorium, as well as an emergency vote line for remote participants (staffed by 8-10 people).

Tech support for A/V Implementation

Lexington: Cary Hall, post-renovation, has a quality audio system deployed throughout the building, including numerous microphones (on the floor, balcony, stage, and lectern) and measures to reduce reverberation. Permanently mounted zoom cameras are able to cover the entire hall, which is well-lighted. A/V system component management (as well as support for questions coming from the general public) is provided via at least 4 people, located in a balcony control booth, the side balcony, and on stage. (One or more of the system operators are from Lex Media, which simulcasts the meeting.)

Belmont: The high school auditorium, while new, wasn't designed for hybrid Zoom-based meetings using many microphones. Audio issues need to be addressed by having a sound person actively manage the in-person/remote mix. Assistive listening devices are available in the auditorium.

Belmont Media simulcasts the meeting. The average total staffing required to run a hybrid meeting is 17-19 people (assumed to include in-person and telephone voting support).

Training

Belmont: Prior to going hybrid, coordination meetings were held with everyone participating including the Moderator, the Town Clerk's staff, Belmont Media, Belmont Public Schools, and Town IT. Training is available for TMMs on the use of Zoom and the PointSolutions voting app, and on the simultaneous management of Zoom access and Point Solutions when remote.

Backup Plans

Belmont: In case of a centralized system failure (vs problems with individual in-person or remote participants), the Town Moderator is able to delay the meeting, as is done for a snowstorm.

Social Impacts

The Belmont Moderator expressed that judging by the large number of members participating remotely, it appeared that many (or most) of the TMMs thought of remote participation as a convenience, but he has come to accept that hybrid meetings with a significant number of remote attendees will in time become the social norm.

Surveys done by the Town of Belmont showed that child care coverage and travel were among the most significant drivers of interest in hybrid meetings.

Overall meeting attendance seems not to have increased with the availability of a remote option.

The Belmont Town Moderator had the perception that the remote participants were less likely to participate in debate.

Appendix E - Current Remote Meeting Guidance

Updated guidance on holding meetings pursuant to the Act Extending Certain COVID-19 Measures

Guidance Update – June 28, 2023

On March 29, 2023, Governor Healey signed into law a supplemental budget bill which, among other things, further extends temporary provisions pertaining to the Open Meeting Law to March 31, 2025. The temporary provisions were first implemented by Executive Order in March 2020 and subsequently enacted by Section 20 of Chapter 20 of the Acts of 2021, An Act Relative to Amending Certain COVID-19 Measures Adopted During the State of Emergency (“Section 20”) (as amended several times, including in early 2025, to extend the expiration of the temporary provisions).

The temporary provisions in Section 20 pertaining to the Open Meeting Law contain two primary provisions.

First, public bodies may continue providing live “adequate, alternative means” of public access to the deliberations of the public body, instead of holding meetings in a public place that is open and physically accessible to the public. “Adequate, alternative means” may include, without limitation, providing public access through telephone, internet, or satellite enabled audio or video conferencing or any other technology that enables the public to clearly follow the proceedings of the public body in real time.

Second, any or all members of a public body may continue participating in meetings remotely; the Open Meeting Law’s requirement that a quorum of the body and the chair be physically present at the meeting location remains suspended.

A public body is not required to provide remote access to a meeting if the meeting is held in a physical location that is open and accessible to the public. Nonetheless, we encourage public bodies to provide multiple methods of access to a meeting when feasible.

What means of access will be considered “adequate, alternative means?”

“Adequate, alternative means” may include, without limitation, providing public access through telephone, internet, or satellite enabled audio or video conferencing or any other technology that enables the public to clearly follow the proceedings of the public body as they are occurring (i.e.,

“live” or “in real time”). The methods listed are non-exhaustive, and we recognize that there are myriad methods that will be acceptable. “Adequate, alternative means” could include Zoom, a high-capacity telephone conference line, Facebook Live, YouTube Live, and broadcasting on live TV, including local cable access television. The brief delay of approximately 20 seconds when Zoom meetings are streamed to Facebook or YouTube Live is acceptable.

May a public body post a recording or transcript of the meeting afterwards, instead of providing access to the meeting as it is occurring?

A public body must provide the public with real-time access for the duration of the meeting, excluding lawful executive sessions. If a meeting is posted as a remote meeting and technical difficulties prevent the public body from providing the public with consistent, clear remote access, the meeting should be canceled or adjourned and rescheduled for a later date. A municipal public body that, for reasons of economic hardship *and* despite best efforts, is unable to provide alternative means of public access that will enable the public to follow the proceedings in real time, may instead post a full and complete transcript, recording, or other comprehensive record on its website as soon as practicable after the meeting. However, in light of the various free and low-cost methods that could be used to provide the public with real-time access, the Division of Open Government strongly recommends that a municipal public body consult with our office before determining that it is unable to provide the public with real time access to a meeting.

May public body members meet in person, while requiring the general public to follow the proceedings remotely?

Yes. Subsection (b) of Section 20 allowing public access through adequate, alternative means is independent from subsection (c), which allows members of the public body to participate remotely. The public body may conduct its proceedings under the relief provided in subsection (b) or subsection (c) or both.

If a public body will provide access to its meeting through “adequate, alternative means,” what information must be included on the meeting notice?

Public bodies must continue to post notice of every meeting at least 48 hours in advance of the meeting, not including weekends or state holidays, using the official notice posting method (physical notice or website), even if the clerk’s office is closed. The notice must include the “location” of the meeting. If access to the meeting will be provided through “adequate, alternative

means,” the meeting notice must include clear instructions for accessing the meeting remotely. A public body may require members of the public to call, email, or “register” (such as in the Zoom Webinar platform) to obtain access information for the meeting, provided that the meeting notice includes clear instructions, and that members of the public can gain meeting access up until and throughout the duration of the meeting (members of the public cannot be required to register in advance).

What other requirements apply to remote meetings?

The Open Meeting Law regulations governing remote participation, 940 CMR 29.10, remain in effect, except where Section 20 specifically suspends certain requirements. In particular, when any—or all—public body members participate in a meeting remotely, the following requirements apply:

1. At the start of the meeting, the chair must announce the name of the member or members who are participating remotely; such information must also be recorded in the meeting minutes.
2. All votes must be taken by roll call.
3. Members of the public body must be clearly audible to each other and to members of the public at all times.
4. When holding an executive session remotely, the public body must still take all required procedural steps for entering into executive session in open session. At the beginning of the executive session, each public body member participating remotely must state that no other person is present or able to hear the discussion at the remote location, unless the public body has approved the presence of that individual.

Should the public body encounter technical problems while meeting remotely, the person chairing the meeting may decide how to address the technical difficulties, but is encouraged wherever possible to suspend discussion while reasonable efforts are made to correct any problem that interferes with a remote participant's ability to hear or be heard clearly. If technical difficulties result in a remote participant being disconnected from the meeting, that fact and the time at which the disconnection occurred must be noted in the meeting minutes.

What about public comment, public participation, and public hearings?

The Open Meeting Law does not require that public bodies allow public comment or public participation during meetings -- to the contrary, the Open Meeting Law specifies that no person shall address the public body without permission of the chair. However, the Attorney General encourages public bodies to allow public comment and/or public participation when feasible. Because the Open Meeting Law does not require that public bodies allow for public comment or public participation during meetings at all, the manner that public bodies may choose to accept comments or questions is outside the scope of the Open Meeting Law. Public hearings, on the other hand, are governed by separate laws that impose additional requirements, and may require opportunity for public comment or testimony. Those requirements are outside the scope of the Open Meeting Law and therefore do not fall within the Division of Open Government's jurisdiction. Public bodies and members of the public should consult with legal counsel for guidance on the requirements for public hearings.

Appendix F - Draft Hybrid Meeting Legislation

HOUSE No. 4771

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, June 24, 2024.

The committee on State Administration and Regulatory Oversight, to whom were referred petition (accompanied by bill, Senate, No. 1970) of William N. Brownsberger for legislation relative to extending certain state of emergency accommodations, the petition (accompanied by bill, Senate, No. 2002) of Paul R. Feeney for legislation to permit enhanced public access to deliberations of public bodies and to permit improved efficiency of public bodies, the petition (accompanied by bill, Senate, No. 2011) of Anne M. Gobi and Joanne M. Comerford for legislation relative to remote access for public bodies and town meetings, the petition (accompanied by bill, Senate, No. 2017) of Jason M. Lewis for legislation relative to nonprofit remote voting, the petition (accompanied by bill, Senate, No. 2024) of Jason M. Lewis, Angelo J. Puppola, Jr., Joanne M. Comerford, Brian W. Murray and other members of the General Court for legislation to modernize participation in public meetings, the petition (accompanied by bill, Senate, No. 2043) of Jacob R. Oliveira for legislation to modernize municipal meetings, town meetings, and local elections, the petition (accompanied by bill, Senate, No. 2063) of Rebecca L. Rausch for legislation relative to update the Open Meeting Law to support remote participation, the petition (accompanied by bill, House, No. 2981) of James Arciero and others for legislation to assure for bidder privacy in certain interviews for public construction contracts, the petition (accompanied by bill, House, No. 2998) of Antonio F. D. Cabral and others relative to participation in public meetings, the petition (accompanied by bill, House, No. 2999) of Daniel Cahill relative to remote voting for certain public charities, the petition (accompanied by bill, House, No. 3014) of Carol A. Doherty and Patricia A. Haddad for legislation to promote public participation in public meetings, the petition (accompanied by bill, House, No. 3025) of William J. Driscoll, Jr., and others relative to remote access for public bodies and town meetings, the petition (accompanied by bill, House, No. 3040) of Denise C. Garlick and others relative to providing for hybrid access to public meetings, the

petition (accompanied by bill, House, No. 3109) of Jeffrey N. Roy for legislation to permit enhanced public access to deliberations of public bodies and to permit improved efficiency of public bodies, the petition (accompanied by bill, House, No. 3110) of Lindsay N. Sabadosa and Michelle M. DuBois relative to remote participation in state public meetings, the petition (accompanied by bill, House, No. 3121) of Erika Uyterhoeven for legislation to make the General Court subject to the open meeting law, the petition (accompanied by bill, House, No. 3671) of Tricia Farley-Bouvier, Mindy Domb and others relative to virtual meetings of appointed statewide public bodies and the petition (accompanied by bill, House, No. 4030) of Lindsay N. Sabadosa relative to public comments and open meeting law, reports recommending that the accompanying bill (House, No. 4771) ought to pass.

For the committee,

ANTONIO F. D. CABRAL.

HOUSE No. 4771

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Third General Court
(2023-2024)

An Act to modernize participation in public meetings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 18 of chapter 30A of the General Laws, as appearing in 2022
2 Official Edition, is hereby amended by striking out, in line 1, the number 25, and inserting in
3 place thereof the following number:- 26.

4 SECTION 2. Section 18 of chapter 30A of the General Laws, as so appearing, is hereby
5 further amended by inserting after the word “meeting”, in line 9, the following word:-
6 information.

7 SECTION 3. Said section 18 of said chapter 30A, as so appearing, is hereby further
8 amended by inserting at the end thereof the following:-

9 “Remote access,” access through the internet, video conferencing or other video
10 technology that allows the public to view and, when permitted or required, participate in a
11 meeting of a public body remotely from a location other than the meeting location.

“Remote participation,” participation by a member of a public body in a meeting of that public body through internet, video conferencing or other video technology remotely from a location other than the meeting location.

SECTION 4. Chapter 30A is hereby amended by striking out section 20 and inserting in place thereof the following section:

Section 20 (a) Except as provided in section 21, all meetings of a public body shall be physically open, and remotely accessible, to the public.

(b) Except in an emergency, in addition to any notice otherwise required by law, a public body shall post notice of every meeting at least 48 hours prior to the meeting, excluding Saturdays, Sundays and legal holidays. In an emergency, a public body shall post notice as soon as reasonably possible prior to the meeting. Notice shall be printed in a legible, easily understandable format and shall contain the date, time and place of the meeting and a listing of topics that the chair reasonably anticipates will be discussed at the meeting.

(c) For meetings of a local public body, notice shall be filed with the municipal clerk and posted to the municipal website by the municipal clerk and may be posted in a manner conspicuously visible to the public at all hours in or on the municipal building in which the clerk’s office is located. For meetings of a regional or district public body, notice shall be filed and posted in each city or town within the region or district in the manner prescribed for local public bodies and notice shall be posted on the regional or district public body’s website. For meetings of a regional school district, the secretary of the regional school district committee shall be considered to be its clerk and shall file notice with the clerk of each city or town within the district and the clerk of such each city or town shall post the notice in the manner prescribed for

34 local public bodies, and notice shall be posted on the regional school district's website. For
35 meetings of a county public body, notice shall be filed in the office of the county commissioners
36 for the county and shall be posted on the county public body's website, and notice may be posted
37 in a manner conspicuously visible to the public at all hours in the places as the county
38 commissioners shall designate for the purpose.

39 For meetings of a state public body, notice shall be filed with the attorney general by
40 posting on a website under the procedures established for this purpose and a duplicate copy of
41 the notice shall be filed with the regulations division in the state secretary's office and notice
42 shall be posted on the state public body's website, or the website of its parent agency.

43 The chair of a public body may petition the attorney general for the use of an alternative
44 method of notice where the use of a website is unduly burdensome or presents a hardship to the
45 public body or regional school district. The attorney general may prescribe or approve alternative
46 methods of notice where the attorney general determines that the use of a website is unduly
47 burdensome or presents a hardship and the alternative methods will afford effective notice to the
48 public.

49 (d) (1) All public bodies shall provide for remote access and remote participation at every
50 meeting.

51 (2) Members of a public body participating physically or participating remotely in a
52 meeting shall participate in the same manner for the duration of that meeting. A public body,
53 other than a local commission on disability, shall have the chair or the chair's designee
54 physically present at all meetings and members participating remotely may vote, count towards
55 the quorum, and shall not be deemed absent for the purposes of section 23D of chapter 39. The

56 chair of a local commission on disability or, in the chair's absence, the person authorized to chair
57 the meeting of a local commission on disability, shall be physically present at the meeting
58 location.

59 (3) Members of a state public body participating physically or participating remotely in a
60 meeting shall participate in the same manner for the duration of that meeting. A state public body
61 shall have the chair or the chair's designee physically present at all meetings and members
62 participating remotely may vote, count towards the quorum, and shall not be deemed absent for
63 the purposes of section 23D of chapter 39. All meetings of a state public body shall be video
64 recorded with access to the recording posted on the website of the public body within 10
65 business days after the meeting.

66 (4) Remote access allowing the public to view or participate in the deliberations of a
67 public body shall be available without any paid subscription, toll, or similar charge. All public
68 bodies shall ensure remote access to meetings is accessible to persons with disabilities and
69 provided in such a manner as to ensure equal opportunity to such persons. Public bodies shall
70 include captioning, through automatic speech recognition technology or otherwise, and shall
71 provide reasonable accommodations, if requested, to persons with disabilities participating
72 remotely, consistent with the Americans with Disabilities Act.

73 (5) All public bodies shall ensure that remote participation by members is accessible to
74 members with disabilities and provided in such a manner as to ensure equal opportunity to such
75 members. Public bodies shall include captioning, through automatic speech recognition
76 technology or otherwise, and shall provide reasonable accommodations, if requested, to persons
77 with disabilities participating remotely, consistent with the Americans with Disabilities Act.

78 (e) After notifying the chair of the public body, any person may make a video or audio
79 recording of an open session of a meeting of a public body, or may transmit the meeting through
80 any medium, subject to reasonable requirements of the chair as to the number, placement and
81 operation of equipment used so as not to interfere with the conduct of the meeting. At the
82 beginning of the meeting, the chair shall inform other attendees of any recordings.

83 (f) No person shall address a meeting of a public body without permission of the chair,
84 and all persons shall, at the request of the chair, be silent. No person shall disrupt the proceedings
85 of a meeting of a public body. If, after clear warning from the chair, a person continues to disrupt
86 the proceedings, the chair may order the person to withdraw from the meeting and if the person
87 does not withdraw, the chair may authorize a constable or other officer to remove the person
88 from the meeting.

89 (g) Within 2 weeks of qualification for office, all persons serving on a public body shall
90 certify, on a form prescribed by the attorney general, the receipt of a copy of the open meeting
91 law, regulations promulgated under section 25 and a copy of the educational materials prepared
92 by the attorney general explaining the open meeting law and its application under section 19.
93 Unless otherwise directed or approved by the attorney general, the appointing authority, city or
94 town clerk or the executive director or other appropriate administrator of a state or regional body,
95 or their designees, shall obtain certification from each person upon entering service and shall
96 retain it subject to the applicable records retention schedule where the body maintains its official
97 records. The certification shall be evidence that the member of a public body has read and
98 understands the requirements of the open meeting law and the consequences of violating it.

SECTION 5. Section 22 of said chapter 30A of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking subsection (a) and inserting in place thereof the following subsections:-

(a) A public body shall create and maintain accurate minutes of all meetings, including executive sessions, setting forth the date, time and place, the members present or absent, a summary of the discussions on each subject, a list of documents and other exhibits used at the meeting, the decisions made, and the actions taken at each meeting, including the record of all votes. Minutes of all meetings, including executive sessions, shall be created, and approved by the following meeting or within 30 days, whichever is later, unless the public body can show good cause for further delay.

SECTION 6. Section 22 of said chapter 30A, as so appearing, is hereby further amended by striking subsection (c) and inserting in place thereof the following:-

(c) The minutes of an open session, if they exist and whether approved or in draft form, shall be made available upon request to any person within 10 business days. A public body may, within 10 business days, refer the requester to the public body's website where the requested minutes, whether approved or in draft form, may be found. Within 10 business days of approval, minutes of an open session shall be posted to the public body's website.

SECTION 7. Said Section 22 of said chapter 30A, as so appearing, is hereby further amended by inserting after the word "meeting", in line 60, the following words:-

Within 10 business days of a determination that continued non-disclosure of executive session minutes is no longer warranted, such executive session minutes shall be posted to the public body's website.

121 SECTION 8. Said section 22 of said chapter 30A, as so appearing, is hereby further
122 amended by inserting after the word “review”, in line 69, the following words:-

123 A public body may, within 10 business days, refer the requester to the public body’s
124 website where the requested minutes may be found if all requested minutes have been released to
125 the public.

126 SECTION 9. Said Section 23 of said chapter 30A, as so appearing, is hereby amended by
127 inserting after the word “violation”, in line 34, the following words: or a civil penalty of not
128 more than \$200 against any member of a public body for a third or subsequent knowing
129 violation.

130 SECTION 10. Subsection (c) of said section 23 of said Chapter 30A, as so appearing, is
131 hereby further amended by striking out the seventh clause and inserting in place thereof the
132 following clauses:-

133 (7) issue a private education letter to a member of a public body;

134 (8) reprimand a member of a public body; provided, however, that no member of a public
135 body shall be reprimanded unless the attorney general has issued a private education letter to said
136 member within the past twelve months; or;

137 (9) prescribe other appropriate action.

138 SECTION 11. Subsection (f) of said section 23 of said Chapter 30A, as so appearing, is
139 hereby further amended by inserting at the end thereof the following paragraph:-

The remedy created hereby is not exclusive but shall be in addition to every other available remedy. In an action brought by 3 or more registered voters, such order of notice may also require the public body to reimburse said voters reasonable attorney's fees and court costs.

SECTION. 12. Chapter 30A of the General Laws, is hereby amended by inserting after section 25, the following new section:

Section 26. (a) All public bodies shall conduct their meetings in accordance with section 20 except as provided herein.

(b) A rural community with a population of less than 10,000 and a population density below 500 people per square mile, as defined by the state office of rural health, within the Department of Public Health, may request a hardship waiver from the division of open government on behalf of any non-elected local public body for reasons of economic or technological hardship.

(c) A local public body that is granted a hardship waiver shall be relieved of the obligation to conduct public meetings in accordance with section 20 of chapter 30A and may conduct meetings with either remote access and remote participation or in a public place that is open and physically accessible to the public.

(d) The division of open government may issue or renew a hardship waiver annually, if necessary, upon a written finding.

SECTION 13. Section 26 of Chapter 30A is hereby repealed.

SECTION 14. Section 13 shall take effect on June 30, 2028.

SECTION 15. Sections 1 through 11 of this act shall take effect on April 1, 2025.

Appendix G – Technical Requirements Detail

1. Functional Requirements - Town Hall

- a. Speech reinforcement (for town hall) and capture (for remote participants) of:
 - i. Moderator
 - ii. Three lectern locations
- b. Audio capture of town hall general environment - to give remote participants a sense of noise level and mood in room
- c. Displays
 - i. Large main display sized for good legibility to back of room - main display for room and primary content being sent to remote participants
 - ii. Supplementary side displays if main display is not large enough - similar to what we have been using in the last few meetings
 - iii. Secondary display for alternative content such as far end speaker - need to be able to make remote participants visible, but at a similar scale to in-room participants
 - iv. Confidence monitor display for presenter to view a duplicate of main display - typically a medium sized monitor in a low rolling cart
- d. Video input at side of main floor for operator location
 - i. Video switching with following:
 - 1. Video presentations
 - 2. Voting mechanics: warrant, timer, vote quantum required, results, votes by TMM screens, result
 - 3. Speaker queue(s)
 - 4. Remote speaker from video conferencing software
 - 5. Remote speaker from remote room

6. Live transcription - new AI-based services have made live transcription services more affordable and accurate. This would be an accessibility improvement.
 - e. Even out loudspeaker coverage of main floor and balcony
 - i. Current loudspeaker coverage in the town hall auditorium is poor. A new loudspeaker system is recommended.
 - f. Far end and remote room audio playback
 - g. Audio and video for far end and remote room
 - i. Main program with a picture-in-picture would be nice
 - h. Assistive listening system - an ADA requirement, and something we already have
 - i. Video camera shots - these would likely be handled by ACMi and their cameras and simply require a connection from ACMi's video switcher to the computer hosting Town Meeting's video conferencing software (e.g., Zoom)
 - i. Moderator
 - ii. Presenter at any lectern
 - iii. Stage
 - iv. Main floor
 - j. Ability to determine a specific TMM's location - in the hall, in remote room, remote
 - i. Likely a function of the voting system
 - k. Location-agnostic voting technology with user authentication
 - l. Robust internet within Town Hall
2. Software Platforms
 - a. The software platforms for hybrid Town Meeting should mirror the in-person experience. One platform, such as Zoom, should mimic the functionality of the Town Hall Auditorium, "enclosure," which will allow staff, speakers, and members of the public to enter the virtual enclosure. A second platform for voting should have a higher level of security and be limited to voting Town Meeting Members.
 - b. Similar experience for adding oneself to speaker queue both in-room and remotely

- c. Similar experience for raising point of order
- 3. Integration with ACMi
 - a. Press Feed via XLR will simplify the audio feed to ACMi.
- 4. Staffing Needs
 - a. Within Town Hall
 - i. Video operator, or accommodation from ACMi
 - b. For support of remote participants
 - i. Backup voting method support
 - ii. Support for access/login issues
 - c. Current:
 - i. One or two from Town IT
 - ii. One or two from clicker vendor (built into contract)
 - iii. One at ACMi control desk
 - d. Remote town meeting required:
 - i. Four Town IT staff
- 5. Capital Costs – Opinion of Probable Cost
 - a. Loudspeaker System - \$75,000 - \$100,000
 - b. Video signal switching and distribution - \$25,000
 - c. Video projector - \$30,000
 - d. Supplemental displays - \$15,000
 - e. Live transcription - \$10,000 plus ongoing subscription costs
 - f. Town Hall audience capture - \$3,000 - \$15,000
 - g. Audio signal processing and control - \$10,000 - \$25,000
- 6. Operating Costs
 - a. Staffing
 - b. Voting technology contract